

PLAN OF LAND LEASED TO DIWAN TEK CHAND I.C.S

SCALE 128 FEET = 1 INCH

FROM POINT 3

2

P R I T H V I R A J R O A D

2546.80

257.25

98

A = 2.83 ACRES

460.00

503

503

503

503

503

503

503

503

503

503

503

503

503

817.383

20-250

287.25

1089.75

257.25

257.25

257.25

257.25

257.25

257.25

257.25

257.25

257.25

257.25

Certified that Rs. 33/- the Stamp duty in respect of this lease has been paid by Hon'ble Dewan Tek Chand, O.B.E., I.C.S.

33/- Collector, Delhi
3.9.22.

11.2.1922

THIS INDENTURE made the eleventh day of August 1922 between the Secretary of State for India, Council, hereinafter called the Lessor of the one part, and The Hon'ble Diwan Tek Chand, O.B.E., I.C.S., hereinafter called the Lessee of the other part.

WHEREAS under the instructions of the Government of India relating to the disposal of building sites in the New Capital, the Chief Commissioner, Delhi, has agreed on behalf of the Secretary of State to demise the plot of Nazul land hereinafter described to the Lessee in the manner hereinafter appearing.

Now this INDENTURE WITNESSETH that in consideration of the premium of Rs. 3290/- (Rupees three thousand two hundred and ninety only) paid before the execution of these presents the receipt whereof the Lessor hereby acknowledges and of the rent hereinafter reserved and of the covenants on the part of the Lessee hereinafter contained, the Lessor doth hereby demise unto the Lessee all that plot of land containing by admeasurement 2.33 acres situated at Delhi in the site acquired for the erection of the New Capital which said plot of land is more particularly described in the schedule herewider written and with the boundaries thereof has for greater clearness been delineated on the plan annexed to these presents and thereon coloured red together with all rights, easements and appurtenances whatsoever to the said plot of land belonging or appertaining to hold the premises hereby demised unto the Lessee in perpetuity from the

fourteenth day of July, 1922 rendering therefor the yearly rent of Rs. 164/8/- (Rupees one hundred and sixty four annas eight only) or such other sum as may hereafter be assessed under the covenants and conditions hereinafter contained clear of all deductions, by equal half-yearly payments on the fifteenth day of January and fifteenth day of July at Delhi in each year at the office of the Deputy Commissioner, Delhi, or of such officer as may from time to time be appointed by the Local Government in this behalf, the first of such payments to be made on the fifteenth day of July next.

Subject always to the exceptions, reservations, conditions, and covenants hereinafter contained, that is to say as follows:

- (1) The Lessor excepts and reserves unto himself all mines, minerals, coals, gold-washing, earth oils and quarries in or under the said lands and full right and power at all times to do all acts and things which may be necessary or expedient for the purpose of searching for, working, obtaining, removing and enjoying the same without providing or leaving any vertical support for the surface of the said land or for any building for the time being standing thereon provided always that the Lessee shall make reasonable compensation to the Lessor for all damage directly occasioned by the exercise of the rights hereby reserved or any of them.

164.8 annas
Grd Rent
↓
1.1.1947 inc
↓
30 yrs
1.1.1997
↓
1.1.2007
↓
1.1.2037

cccccccc2/-

- (2) The Lessee will pay unto the Lessor the yearly rent hereby reserved on the days and in the manner hereinbefore appointed.
- (3) The Lessee will from time to time and at all times pay and discharge all rates, taxes, charges and assessments of every description which are now or may at any time hereafter during the continuation of this lease be assessed, charged or imposed upon such premises hereby demised or on buildings to be erected thereupon or on the Landlord or Tenant in respect thereof.
- (4) All arrears of rent and other payments due in respect of the premises hereby demised shall be recoverable in the same manner as arrears of land revenue under the provisions of Punjab Land Revenue Act, 17 of 1887, and any amending Act for the time being in force.
- (5) The Lessee will within the period of three years from the date of these presents at the Lessee's own expense erect complete and finish in and upon the said premises a residence with all necessary outhouses, sewers, drains and other appurtenances in accordance with a plan or plans to be approved in writing by the Chief Commissioner, Delhi or such officer or body as the Governor General in Council may appoint in this behalf and will not without the previous consent in writing of the Chief Commissioner, Delhi or duly authorised Officer as aforesaid erect or suffer to be erected on any part of the said demised premises any buildings other than and except the residence hereby covenanted to be erected.
- (6) The Lessee will not without such consent as aforesaid make any alteration in the plan or elevation of the said residence or attached buildings (or carry on or permit to be carried on on the said premises any trade or business whatsoever ~~otherwise than for business~~ or use the same or permit the same to be used for any purpose other than that of a residence).
- (7) The Lessee will not without the written consent of the Chief Commissioner, Delhi or of such Officer or body as the Governor General in Council may authorize in this behalf make any excavations in the premises hereby demised, and will maintain the premises and all buildings thereon in a sanitary condition to the satisfaction of the Chief Commissioner, Delhi or duly authorized officer or body as aforesaid.
- (8) The Lessee will keep the external walls and roofs of the building to be erected in a reasonable state of repair to the satisfaction of the said Chief Commissioner, Delhi or duly authorized officer or body as aforesaid.

- (9) The Lessee will at all reasonable times grant access to the demised premises to the said Chief Commissioner, Delhi or duly authorized officer or body as aforesaid or to the sanitary staff appointed for the purpose of maintaining the premises in a sanitary condition and will comply with such sanitary rules and regulations as may be prescribed from time to time by the said Chief Commissioner, Delhi or duly authorized officer or body as aforesaid.
- (10) The Lessee will on the determination of the lease peaceably yield up the said demised premises and the said residence and buildings thereto appertaining unto the Lessor.
- (11) In the event of the Lessee subletting the premises hereby demised or any part thereof for any period the yearly rent payable to the Lessee in respect of such subletting shall not in any case exceed 10 per cent of the capitalised value of the said premises and the buildings and works erected thereon at the time of the subletting or the part thereof sublet, and in the event of the period of such subletting or the part thereof sublet, and in the event of the period of such subletting being for less than a year then the rent payable for such period shall not exceed a rent proportionate to such yearly rent as aforesaid. The capitalised value as aforesaid shall be as assessed by the Chief Commissioner of Delhi or such officer or body as the Governor General in Council may appoint in this behalf.
- (12) The Lessee shall upon every assignment, transfer or sublease of the said premises hereby demised or any part thereof or within one calendar month thereafter deliver a notice of such assignment, transfer or sublease to the Chief Commissioner, Delhi or such officer or body as the Governor General in Council may authorize on this behalf setting forth the names and description of the parties thereto and the particulars and effect thereof, and all such assignees, transferees and sublessees and the heirs of the Lessee shall be bound by all the covenants and conditions herein contained and be answerable in all respects therefor.
- (13) If the said yearly rent hereby reserved or any part thereof shall at any time be in arrear and unpaid for one calendar month next after any of the said days whereon the same shall have become due, whether the same shall have been demanded or not or if there shall have been in the opinion of the Chief Commissioner, Delhi or such officer or body as the Governor General in Council may authorize on this behalf whose decision shall be final, any breach by the Lessee or by any person claiming through or under him of any of the covenants or conditions hereinbefore contained and on his part to be observed or performed then and in such case it shall be

lawful for the Lessor or any person or persons duly authorized by him notwithstanding the waiver of any previous cause or right of re-entry upon any part of the premises hereby demised or of the buildings thereon in the name of the whole to re-enter and thereupon this demise and everything herein contained shall cease and determine and the Lessee shall not be entitled to any compensation whatsoever.

- (14) The rent, hereby reserved, may at the option of the Lessor be enhanced on or after the first day of January 1947 (Nineteen hundred and forty seven) and thereafter at the end of each successive period of not less than thirty years provided that the rent fixed at each enhancement shall in no case exceed one-third of the letting value of the site without buildings at the date on which the enhancement is made, as such letting value shall be assessed by the Collector of Delhi. Provided always that any such assessment of letting value for the purpose of this provision shall be subject to the same right on the part of the Lessee of appeal from the orders of the said Collector and within such time as if the same were an assessment by a Revenue Officer within the meaning of Section 50 of the Punjab Land Revenue Act, 1887 (Act XVII of 1887) and the proceedings for or in relation to any such appeal shall be in all respects governed by the provisions of the said Act in the same manner as if the same had been taken thereunder.

- (15) The expressions the Lessor and the Lessee hereinbefore used shall where the context so admits include in the case of the Lessor his successors and assigns and in the case of the Lessee his heirs, executors, administrators or representatives and assigns.

IN WITNESS WHEREOF the parties hereto have set their hands on the dates hereinafter named respectively.

Signed and delivered by

The Hon'ble Diwan Tek Chand, O.B.E., I.C.S.

this fifteenth day of July
one thousand nine hundred twenty two
in the presence of s

(1) Sd/- Illegible.

Sd/-

(2) Sd/- Illegible

H.V.C.,
Commissioners Office,

Ambala, Now at Simla.

Signed by The Hon'ble Mr. C.A.
Barron, C.S.I., C.I.E., C.V.O.,
Chief Commissioner, Delhi Prov-
ince, by order of the Governor
General of India in Council on
behalf of the said Secretary of
State for India in Council on
the eleventh day of
August one thousand
nine hundred and twenty two

Sd/-

The Schedule :-

Bounded on the North west by Prithvi Raj Road
and bounded on the South East by a Service Road and
bounded on the North East and South West by Government
Lands

'B'

Presented by B. Deo Datta Clerk, Commissioner's Office Ambala Divn. Spl. Attorney of the Hon'ble Diwan Tek Chand, O.B.E., I.C.S., Commissioner, Ambala Divn. in the Office of the Sub-Registrar, Delhi Pro. this 9th day of December, '22 at 12.29 P.M.

Sd/- Deo Datta
Clerk
Commissioner's
Office, Ambala.

Sd/- Illegible.

Execu. admitted by B. Deo Datta noted above, who is identified by B. Methan Lal 2nd clerk, D.C.'s office Delhi, Mir Mohd. Sub-Tehdr. Delhi who is personally known to me. Having satisfied myself that this document was executed by the Hon'ble Mr. C.A. Barron C.S.I., C.I.E., C.V.O., Chief Commissioner, Delhi Pro. on behalf of the Secy. of State in Council for India. In his official capacity his attendance and signature are dispensed with, this document is admitted to Registration. Corrections are initialled.

Sd/- Illegible
9/12/22

Sd/- Deo Datta
Clerk,
Commissioner's
Office, Ambala.

Sd/-Methan Lal
Second Clerk,
By. Commrs Office
Delhi. 9.12.22.

Sd/-M.M. Hassain
Tehsildar,
Delhi.

Registered as No. 3309 in Addl. Book No. I Volume
9 on pages 273 to 280 this 14th day of December, 1922.

Sd/- Illegible.
14.12.22.

TRUE COPY

Attested

22/12/22

22/12/22
(D. N. ASIJA)

भूमि तथा विकास अधिकारी

Land & Development Officer

नई दिल्ली

New Delhi.

PERPETUAL LEASE

For and in consideration of the sum of

2000000

Five hundred thousand dollars

to the said

of the County of

State of

do hereby certify that

the said

has been duly

recorded in the

office of the

Recorder of Deeds

of the County of

State of

this 1st day of

1900

at the City of

Washington

District of Columbia

in presence of

the undersigned

Recorder of Deeds

and the said

has been duly

recorded in the

office of the

Recorder of Deeds

of the County of

State of

this 1st day of

1900

at the City of

Washington

District of Columbia

in presence of

the undersigned

Recorder of Deeds

and the said

has been duly

recorded in the

office of the

Recorder of Deeds

of the County of

State of

2000000

Five hundred thousand dollars

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do hereby certify that

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of the County of

State of

this 1st day of

1900

at the City of

Washington

District of Columbia

in presence of

the undersigned

Recorder of Deeds

and the said

has been duly

recorded in the

office of the

Recorder of Deeds

of the County of

State of

where the said wall shall be erected, and the said wall shall be erected in such a manner as to be in accordance with the provisions of the said Act of 1857.

The Lessee shall, within the period of three years from the date of these premises, at the Lessee's own expense erect complete and substantial buildings on the said premises.

The Lessee will, from time to time, keep the said buildings in good repair and shall be liable for the charges and maintenance of every structure which is now or hereafter erected during the continuance of this lease, to be imposed upon such premises, hereby demised, or on buildings thereon, or on the Landlord or Tenant in respect thereof.

All arrears of rent and other payments due in respect of the premises hereby demised shall be recoverable in the same manner as arrears of land revenue under the provisions of Punjab Land Revenue Act of 1857, and may be levied for the time being in force.

The Lessee will, within the period of three years from the date of these premises, at the Lessee's own expense erect complete and substantial buildings on the said premises, to be used as a residence.

The buildings hereby demised, with all necessary outhouses, outhouses, and other appurtenances, in accordance with a plan or plans as approved in writing by the Chief Commissioner, Delhi, or such other or body as the Governor General in Council may appoint in this behalf, and will not without the previous consent in writing of the Chief Commissioner, Delhi, or any authorized officer as aforesaid erect or suffer to be erected on any part of the said demised premises any buildings other than and except the residence hereby demised, hereby covenanted to be used as a residence.

The Lessee will not without such consent as aforesaid make any alteration in the plan or elevation of the said residence, or attached buildings, for any or permit to be carried on on the said premises any trade or business whatsoever, or use the same or permit the same to be used for any purpose other than that of a residence.

The Lessee will not without the written consent of the Chief Commissioner, Delhi, or such officer or body as the Governor General in Council may authorize in this behalf make any excavations in the premises hereby demised, and will maintain the premises and all buildings thereon in a good and sound condition to the satisfaction of the said Chief Commissioner, Delhi, or any authorized officer or body as aforesaid.

The Lessee will have the external walls and roof of the building hereby demised in good and sound condition, and will maintain the same in good and sound condition to the satisfaction of the said Chief Commissioner, Delhi, or any authorized officer or body as aforesaid.

[illegible]

Mr. - Dep. Secy, Mr. - Nathan Dal, Mr. - Mohd. Haasani
 Clerk, 2nd Clerk, Tahsildar,
 Commissioner's Office, Deputy Commissioner's Office, Delhi.
 A. B. A. L. A. Office, DELHI.
 9-12-22.

Registered at NO. 2509 in Additional Book I Volume 6 of the
 1922-23 to 25-26 of the 1922-23 day of December 1922.